

বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ
আপীল সম্পর্কিত
ফৌজদারী

প্রজ্ঞাপন	Patuakhali	498
ফৌজদারী কার্যবিধি আইনের ৪৯৮ ধারার অধীনের রিভিশন নং		
মামলায়	Md. Emran Talukder	আবেদনকারী
মাধ্যম	Mr. Md. Bodiuzzaman Tapadar, Advocate	

বনাম

The State

Mr. M.D. Rezaul Karim, D.A.G with
Ms. Farhana Afroze Runa, A.A.G
Mr. Mohammad Abdul Aziz Masud, A.A.G
Mr. Md. Shamim Khan, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শান্তি ও দণ্ডদেশ

Present

Mr. Justice Md. Atoar Rahman

and

Mr. Justice Md. Ali Reza

আপীল আদালত

তারিখ

২০

কোর্টের আপীল বিভাগ	তারিখ	প্রজ্ঞাপন	স্বাক্ষর
	12.05.2024	Heard the learned Advocate and perused the petition for bail of the accused-petitioner under section 498 of the Code of Criminal Procedure and the documents annexed thereto. Mr. M.D. Rezaul Karim, the learned Deputy Attorney General, appearing for the state opposes the contentions so far made by the learned Advocate for the petitioner. Let a Rule be issued calling upon the opposite party to show cause as to why the accused-petitioner should not be enlarged on bail in Patuakhali Sadar Police Station Case No. 40 dated 26.03.2024 corresponding to G.R. Case No. 107 of 2024 under section 15(3) of Special Powers Act, read with sections 143/332/333/353/427/307 of the Penal Code, now pending in the Court of learned Chief Judicial Magistrate, Patuakhali and/or passed such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশের ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the Rule, let the accused-petitioner Md. Emran Talukder, son of Anowar Hossain Hang be enlarged on ad-interim bail for 01 (one) year from date on furnishing bail bond subject to the satisfaction of the learned Chief Judicial Magistrate, Patuakhali. The Rule is made returnable within 04 (four) weeks from date. The petitioner shall put in 2(two) sets of requisites within 7 days, for service of notice of the Rule upon the opposite party in normal course as well as by registered post with A/D as per the provisions of the Supreme Court of Bangladesh (High Court Division) Rules, 1973. The office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in as per the provisions of above Rules. The court below is at liberty to cancel the bail of the petitioner in accordance with law, if the privilege of bail is misused by him in any manner. The accused-petitioner is also directed to file affidavit of facts stating the latest position of the case if further extension of bail is needed. Naher, B.O.

দ্রষ্টব্যঃ কালা কালিত অফিস নোটর একটি ক্রমিক নম্বর এবং লাল কালিত কোর্টর আদশর আরকটি ক্রমিক নম্বর হইব।

নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩